

Amendment No. 2 to HB1709

Vaughan
Signature of Sponsor

AMEND Senate Bill No. 1901

House Bill No. 1709*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 4-58-103(a)(2), is amended by deleting the subdivision.

SECTION 2. Tennessee Code Annotated, Section 20-9-609(a), is amended by deleting the subsection and substituting:

(a)

(1) To be licensed as a court reporter, an applicant shall submit proof of the following:

(A) The applicant is a United States citizen or a qualified alien, as defined in § 4-58-102; and

(B) The applicant passed the National Court Reporters Association registered professional reporter examination, the National Verbatim Reporters Association certified verbatim reporter examination, or the American Association of Electronic Reporters and Transcribers certified electronic reporter examination and certified electronic transcriber examination.

(2) Applications for licensure must be signed and sworn by the applicants and submitted on forms furnished by the commissioner.

(3) All applicants who are found qualified to engage in the practice of court reporting pursuant to this part must be issued a license as a licensed court reporter and an identifying number.

(4) The license is valid for two (2) years from the date of issuance.

(5) Notwithstanding any law to the contrary, a licensed court reporter is not required to be a notary public to administer oaths to witnesses in the performance of their professional duties as a court reporter.

SECTION 3. Tennessee Code Annotated, Title 23, Chapter 3, Part 1, is amended by adding the following as a new section:

The supreme court is encouraged to establish guidelines to limit a person's eligibility for a license to practice law or engage in law business to a person who is a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 4. Tennessee Code Annotated, Section 37-5-127, is amended by adding the following as a new subsection:

(e) To be eligible for a professional license issued by the department, board, commission, agency, or other governmental entity pursuant to this title, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 5. Tennessee Code Annotated, Section 42-2-210, is amended by adding the following as a new subsection:

(d) **Aeronautics Instructors License Requirement.** To be licensed as an aeronautics instructor pursuant to this section, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 6. Tennessee Code Annotated, Title 43, Chapter 1, Part 1, is amended by adding the following as a new section:

To be eligible for a professional license issued by the department pursuant to this title, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 7. Tennessee Code Annotated, Section 44-10-203, is amended by designating the existing language as subsection (a) and adding the following as a new subsection:

(b) To be eligible for a license pursuant to this section, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 8. Tennessee Code Annotated, Section 44-15-111, is amended by adding the following as a new subsection:

(c) To be eligible for a certificate pursuant to this section, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 9. Tennessee Code Annotated, Section 44-16-201, is amended by designating the existing language as subsection (a) and adding the following as a new subsection:

(b) To be eligible for a license pursuant to this section, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 10. Tennessee Code Annotated, Section 44-17-104, is amended by adding the following as a new subsection:

(c) To be eligible for a license pursuant to this section, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 11. Tennessee Code Annotated, Section 45-1-130, is amended by adding the following as a new subsection:

(e) To be eligible for a license under this title, an individual must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 12. Tennessee Code Annotated, Section 47-18-5504, is amended by adding the following as a new subsection:

(d) To be eligible for registration under this chapter, a provider must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 13. Tennessee Code Annotated, Section 47-18-5512, is amended by designating the existing language as subsection (a) and adding the following as a new subsection:

(b) Prior to a provider's license, certificate, or registration from another state being accepted by the administrator, the administrator shall either:

(1) Confirm that the other state has verified that the provider is a United States citizen or a qualified alien, as defined in § 4-58-102; or

(2) Verify that the provider is a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 14. Tennessee Code Annotated, Section 47-18-5512, is amended by adding the following as a new subdivision:

(4) The criteria in subsection (b) have been met.

SECTION 15. Tennessee Code Annotated, Section 47-18-5803, is amended by adding the following as a new subsection:

(f) To be eligible for a license under this part, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 16. Tennessee Code Annotated, Section 47-26-804(a)(1), is amended by deleting the subdivision and substituting:

(1) Is a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 17. Tennessee Code Annotated, Section 47-26-1004, is amended by deleting subdivision (3) and substituting:

(3) Be a United States citizen or a qualified alien, as defined in § 4-58-102; and

SECTION 18. Tennessee Code Annotated, Section 49-5-101, is amended by adding the following as a new subsection:

(h) To be eligible for an educator license pursuant to this section, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 19. Tennessee Code Annotated, Section 49-5-106, is amended by adding the following as a new subsection:

(l) To be eligible for a permit or license endorsement exemption pursuant to this section, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 20. Tennessee Code Annotated, Section 49-5-109, is amended by adding the following as a new subsection:

(b) Prior to entering into a reciprocal agreement with a certifying or licensing authority in another state, as described in subsection (a), the state board of education shall either:

(1) Confirm that the other state has verified that the person is a United States citizen or a qualified alien, as defined in § 4-58-102; or

(2) Verify that the person is a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 21. Tennessee Code Annotated, Section 52-2-406, is amended by adding the following as a new subsection:

(i) To be eligible for a license pursuant to this part, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 22. Tennessee Code Annotated, Section 53-1-204, is amended by adding the following as a new subsection:

(e) To be eligible for a license pursuant to this section, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 23. Tennessee Code Annotated, Title 53, Chapter 3, Part 1, is amended by adding the following as a new section:

To be eligible for a license or registration certificate pursuant to this chapter, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 24. Tennessee Code Annotated, Section 53-7-216, is amended by adding the following as a new subsection:

(f) To be eligible for a license pursuant to this part, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 25. Chapter 463 of the Public Acts of 2025, is amended by adding the following as a new subsection in § 53-7-205 in Section 1:

(e) To be eligible for a license pursuant to this part, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 26. Tennessee Code Annotated, Section 53-14-105(b), is amended by adding the following as a new subdivision:

(6) Provides proof that the applicant is a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 27. Tennessee Code Annotated, Section 55-17-302, is amended by adding the following as a new subsection:

(d) To be eligible for a license pursuant to this section, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 28. Tennessee Code Annotated, Section 56-6-103, is amended by designating the existing language as subsection (a) and adding the following as a new subsection:

(b) To be eligible for a license pursuant to this section, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 29. Tennessee Code Annotated, Title 57, Chapter 3, Part 1, is amended by adding the following as a new section:

To be eligible for a professional license or permit under this chapter, a person must be a United States citizen, a qualified alien, as defined in § 4-58-102, or have a valid J-1 or F-1 student visa, as verified by the alcoholic beverage commission.

SECTION 30. Tennessee Code Annotated, Title 57, Chapter 5, Part 1, is amended by adding the following as a new section:

To be eligible for a permit under this chapter, a person must be a United States citizen, a qualified alien, as defined in § 4-58-102, or have a valid J-1 or F-1 student visa, as verified by the alcoholic beverage commission.

SECTION 31. Tennessee Code Annotated, Title 57, Chapter 7, Part 1, is amended by adding the following as a new section:

To be eligible for a professional license under this chapter, a person must be a United States citizen, a qualified alien, as defined in § 4-58-102, or have a valid J-1 or F-1 student visa, as verified by the alcoholic beverage commission.

SECTION 32. Tennessee Code Annotated, Title 59, Chapter 1, Part 1, is amended by adding the following as a new section:

To be eligible for a license under this chapter, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 33. Tennessee Code Annotated, Title 59, Chapter 4, Part 2, is amended by adding the following as a new section:

To be eligible for a certificate under this chapter, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 34. Tennessee Code Annotated, Title 60, Chapter 4, Part 1, is amended by adding the following as a new section:

To be eligible for a license under this chapter, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 35. Tennessee Code Annotated, Section 62-26-206(a)(2), is amended by deleting the subdivision.

SECTION 36. Tennessee Code Annotated, Section 62-26-207(a)(2), is amended by deleting the subdivision.

SECTION 37. Tennessee Code Annotated, Section 62-27-107(a), is amended by deleting subdivision (2).

SECTION 38. Tennessee Code Annotated, Section 62-35-106(2), is amended by deleting the subdivision.

SECTION 39. Tennessee Code Annotated, Section 62-35-117(2), is amended by deleting the subdivision.

SECTION 40. Tennessee Code Annotated, Title 62, Chapter 76, Part 1, is amended by adding the following as a new section:

Notwithstanding §§ 62-5-305, 62-5-307, and 62-5-312, to be eligible for a certificate or professional license from a board, commission, agency, or other governmental entity created pursuant to this title, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 41. Tennessee Code Annotated, Section 63-1-104(c), is amended by deleting the subsection and substituting:

(c) A person who meets the eligibility requirements of § 63-1-181 must not be denied a license as long as the applicant otherwise meets all of the qualifications for licensure and is deemed fit to practice.

SECTION 42. Tennessee Code Annotated, Title 63, Chapter 1, Part 1, is amended by adding the following as a new section:

63-1-181. Eligibility requirement.

(a)

(1) To be eligible for a license, certificate, permit, or authorization under this title, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

(2) Notwithstanding subdivision (a)(1) and § 4-58-103, a person may be eligible for a license, certificate, permit, or authorization under this title if such person is seeking to practice as a physician, pursuant to chapter 6 or 9 of this title, and provides proof that the person has applied for a valid visa that would authorize such person to work in the United States under federal law.

(b) If a board issues a license to an applicant who holds or possesses a valid license to practice a healing art pursuant to this title in another state, then the board shall either:

(1) Confirm that the other state has verified that the person meets the requirements in subsection (a); or

(2) Verify that the person meets the requirements in subsection (a).

(c) Each licensing agency operating under this title shall comply with § 4-1-609.

Upon submission of a report required under § 4-1-609, the commissioner, chair of the licensing agency, or administrative staff of the licensing agency designated by the chair must automatically and immediately, without further action by the licensing agency, revoke the license of a licensee. The licensing agency shall immediately send written notice of the license revocation to the licensee. If such licensee subsequently obtains United States citizenship or qualified alien status, then the licensee may apply for a new license.

SECTION 43. Tennessee Code Annotated, Section 63-5-110(a)(2), is amended by deleting the subdivision and substituting:

(2) The applicant must be at least eighteen (18) years of age and of good moral character and reputation.

SECTION 44. Tennessee Code Annotated, Section 63-11-207(a)(3)(B), is amended by deleting the subdivision.

SECTION 45. Tennessee Code Annotated, Section 63-11-207(b)(2)(B), is amended by deleting the subdivision.

SECTION 46. Tennessee Code Annotated, Section 63-11-207(c)(4)(B), is amended by deleting the subdivision.

SECTION 47. Tennessee Code Annotated, Section 63-14-103(a)(1), is amended by deleting the subdivision and substituting:

(1) A person is entitled to make application to the board for examination if the person meets the following requirements:

(A) The person is of good moral character;

(B) The person is eighteen (18) years of age or older; and

(C) Either:

(i) The person has satisfactorily completed no less than two (2) years of the prescribed course of a school for dispensing opticians recognized by the board; or

(ii) The person has had practical training and experience of a grade and character satisfactory to the board as an apprentice or student under the supervision of a dispensing optician, optometrist, or ophthalmologist licensed by the state for a period of no less than three (3) years or the equivalent amount of time under the supervision of such licensed professional of another state that has dispensing opticianry licensure criteria at least as strict as this state.

SECTION 48. Tennessee Code Annotated, Section 63-16-104(a)(1)(B), is amended by deleting the subdivision.

SECTION 49. Tennessee Code Annotated, Section 63-20-102(1)(A), is amended by deleting the subdivision.

SECTION 50. Tennessee Code Annotated, Section 68-24-602, is amended by adding the following as a new subsection:

(d) To be eligible for a license under this part, a person must meet the eligibility requirements in § 63-1-181.

SECTION 51. Tennessee Code Annotated, Section 68-104-102, is amended by adding the following as a new subsection:

(h) To be eligible for a permit under this part, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 52. Tennessee Code Annotated, Section 68-135-103, is amended by adding the following as a new subdivision:

(6) The applicant shall provide proof that the applicant is a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 53. Tennessee Code Annotated, Section 68-140-306, is amended by adding the following as a new subsection:

(k) To be eligible for a license or certificate under this section, a person must meet the eligibility requirements in § 63-1-181.

SECTION 54. Tennessee Code Annotated, Section 68-221-904, is amended by adding the following as a new subsection:

(d) To be eligible to be certified under this section, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 55. Tennessee Code Annotated, Section 71-1-134, is amended by adding the following as a new subsection:

(e) To be eligible for a professional license under this title, a person must be a United States citizen or a qualified alien, as defined in § 4-58-102.

SECTION 56. The heading in this act is for reference purposes only and does not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the heading in any compilation or publication containing this act.

SECTION 57.

(a) Section 63-1-181(c) in SECTION 42 of this act is subject to HB 1711 / SB 2108 becoming a law, the public welfare requiring it, and, upon such occurrence, takes effect July 1, 2026, at 12:01 a.m., the public welfare requiring it.

(b) For all other purposes, this act takes effect upon becoming a law, the public welfare requiring it, and applies to licenses, permits, certificates, authorizations, or registrations applied for or renewed on or after that date.